

Dustin Paul

Law 401D, Section 001

Professor M. Jackson

April 19, 2013

Penal Policy: Final Project Commentary

This poem was inspired by my collective experience in Law 401D and attempts to incorporate some of the major themes of the course. I drew upon the stories and experiences shared by Professor Jackson, the interactions I was able to have with some of the inmates on our class visit to Matsqui, the thoughts and opinions of my classmates, and also the short time I was able to spend with Gary Weaver and his employer on a ride home after class.

"A Prisoner's Struggle" was my interpretation of some of the frustrations and experiences that any given inmate might go through while serving a federal sentence. I aimed to capture the underlying resentment directed toward the institution, the state and the guards by the prisoners. At the same time, I wanted no denial of wrongdoing from the subject of the poem for fear of the reader mitigating the unjustness of the system against the subject's failure to accept responsibility for his actions.

The dark, empty cell in the background and the faint light coming in from the barred window were selected as being symbolic of the isolation experienced by prisoners and the hope of the outside as providing solace for their ongoing struggle while in prison. An explanation of my choice for the subject follows, as well as an explanation of the main themes from the course that were incorporated into the poem.

The Subject – The Fictitious Inmate

I purposely wanted to keep the age of the individual vague. I wanted as many readers as possible to be able to relate by putting themselves in the position of the prisoner. I felt it was necessary to give him a son, though, to depict the prisoner as somewhat of a "responsible" adult capable of understanding right from wrong – as opposed to just some punk kid complaining of his mistreatment while refusing to accept responsibility for his actions. Again, I didn't want the reader to be able to mitigate the impact of

the unjustness of the system. This is also consistent with what I experienced with many of the Matsqui prisoners – that they had taken responsibility for their crime and were simply seeking to be treated fairly while being given the opportunity to somehow better themselves through programs.

I wanted the contrast of using both crude and sophisticated language to convey that not all prisoners fit the typical stereotype. I was remarkably surprised (I am ashamed to admit) at the level of intellect and sophistication displayed by a few of the prisoners on our visit. Their ability to synthesize complex legislation and articulate the difficulty they faced was compelling.

Administrative Segregation

We talked at length about the regime covering administrative segregation and its potential to adversely impact the mental health of prisoners. The opening stanza seeks to capture the effect that lengthy periods of solitary confinement and have – for example, the states of disassociation and delusion experienced by inmates placed in confinement at places like the old "Penthouse". This is what I aimed to capture in the words, "I'm not even sure it's me", showing the potential for negative transformation. Such treatment breeds the pervasive resentment towards the system we so commonly came across throughout the course, which in turn contributes to the incredibly high rates of recidivism.

The third stanza and opening line of the fourth draw upon our class discussion regarding the ability of the institution to keep prisoners in administrative segregation during the investigatory phase of an incident. I want the reader to experience the frustration of the inmate who is subject to weeks of solitary confinement without knowing the charges, and who, after being vindicated, must stay there for an indefinite period of time awaiting a bed. It encourages the reader to think about how they would react if put in the same position.

Lack of Programs

The second stanza draws upon the common theme of the Matsqui visit that without programs there is simply no positive outlet for the inmates' energy. In the absence of an escape valve, only so much can be internalized before an outburst – usually in the form of physical confrontation with either another inmate or a guard. It also captures the unfortunate and more recent trend of the government to be

putting the bulk of its resources into simply housing inmates as opposed to investing in programs for rehabilitation.

The Militarization of Guards

The changing nature of prisoner treatment by guards was another topic covered in the course – and a highlight of the Matsqui visit. There was concern expressed that a certain type of person is now more likely to become a guard – one seeking to exert control over others. Many young people now become guards straight out of college after completing a two-year Criminal Justice diploma or four-year Criminology degree. These persons will likely have little to no practical experience in dealing effectively with face-to-face confrontation and may often forget that their most useful tools are their voice and demeanor. Each has the ability to de-escalate a situation before it evolves, but a quick look at the modern prison guard shows a different approach. They now bulk themselves up with what must be 40 pounds of gear, whereas it wasn't always like that. The G.I. Joe look is symbolic of the militarization of prison administrations. It says to the prisoners "you are a threat to me", before anything has been done to invoke that fear. The G.I. Joe look sets the stage for the types of interactions that prisoners and guards will have – and it is not a good one.

The Treatment of Visitors

I had the opportunity to chat with a young man at Matsqui, likely in his late 20s or early 30s, who was a first-time offender serving a federal sentence for killing a woman while driving drunk. He asked what the holdup was in getting started, and I explained that two of my classmates had been denied entry. He went on to tell me that his wife was denied entry the week prior. The ion scanner had picked up traces of LSD. "Who even sells that shit anymore" was his response with a laugh, but I could see that he was not amused at all. He was upset about the impact that his incarceration was having on his wife and was visibly troubled by her denial of entry.

I attempted to capture the ridiculousness of both his wife's experience and that of my classmates in the fourth stanza. My classmates' experience demonstrates that guards are willing to deny entry while knowingly having no legal basis for doing so. They may not think a whole lot of denying a person entry,

but the effect on that person and the individual they've come to see may be great. It's simply one more source of frustration for the prisoner in this poem.

The Parole System Wants Me to Fail

After class one evening I offered to drive Gary Weaver and his employer to a skytrain stop. The conversation was one of the more interesting ones I've ever been a part of. One of the primary themes was how badly his parole officer wanted him to fail. He discussed the halfway house he had been put into and how at least half of the other persons there had been returned to prison and the difficult task he faced in not following the crowd. In his words, "this bitch [his PO] wants me to fail. I just know it".

Vanished In-Person Hearings

It is difficult to highlight the effect of the removal of in-person hearings for parole revocation in a poem. I wanted to incorporate the loss as part of the revolving door aspect of prisons that the overall poem aims to demonstrate, however. Obviously the in-person hearing is important to the subject of the poem, and without it he is returned to prison in circumstances which he may otherwise not have been. Various examples were provided by Professor Jackson depicting exactly such circumstances.

The Social Impact of Prison

As a final point, the sixth stanza seeks to capture the ongoing isolation that accompanies ex-cons out into the community. I discussed in class how surprised I was at my inability to relate to the younger Matsqui inmates, and Professor Jackson responded by asking the class to put the shoe on the other foot, so to speak. The story of one individual was highlighted. He was paroled for murder and had made a somewhat of a successful attempt to reintegrate into the community, finding a job and joining sporting teams. The difficulty was that after certain events he would get invited to barbecues or parties. And what happens there? People socialize. They ask questions about what you do for work, where you're from, whether you have children etc. What is an ex-con supposed to say? Because this particular individual had nothing to say and feared coming clean about his past for risk of losing his newfound friends, he withdrew from any social gathering. And so, that is how the isolation of prison can follow inmates out into the community as it did to my hypothetical subject.